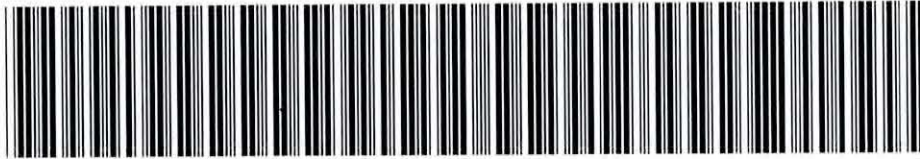


EWR D&I ANNOTATION



FAN-000001L083001DP470-3528

Artemis # : 000001L083001DP470

Record Created Date : 09/11/2009

Printed Date : 09/17/2009

Description :

DI09-003-SEQ-470 ON SEPTEMBER 22, 2008, GENERAL MOTORS WAS CONTACTED BY PHONE BY A HUSBAND WHO REPORTED HIS WIFE HAD BEEN INVOLVED IN AN ACCIDENT ON JULY 23, 2008, WHILE DRIVING HER 2006 SATURN ION 2-DOOR COUPE AND HAD NOT BEEN ABLE TO WALK SINCE. HE STATED HIS WIFE DROVE OFF THE RIGHT SHOULDER OF THE ROADWAY TO AVOID COLLIDING WITH AN ONCOMING CAR THAT WAS TRAVELING IN HER LANE, DOWN A FOUR-FOOT EMBANKMENT AND STRUCK A TREE. THE VEHICLE WAS DECLARED A TOTAL LOSS AND THE AIRBAGS DID NOT DEPLOY. NO DETAILS OF THE INCIDENT, INJURIES OR POLICE REPORT WERE PROVIDED IN THE D&I SUBMISSION. WHEN GENERAL MOTORS AGREED TO THE HUSBAND'S REQUEST TO INSPECT THE VEHICLE TO DETERMINE WHY THE AIRBAGS DID NOT FUNCTION, THEY DISCOVERED THAT THE VEHICLE HAD BEEN TOWED TO A SALVAGE YARD WITH THE IGNITION TURNED ON; AS A CONSEQUENCE ALL THE DATA IN THE CRASH DATA RECORDER WAS ERASED AND COULD NOT BE RETRIEVED. A SELF-TEST OF THE AIRBAG SYSTEM DID NOT INDICATE ANY ANOMOLIES OR DTCS. WHEN THE HUSBAND RELAYED THE OPINION OF THE POLICE OFFICER WHO RESPONDED TO THE ACCIDENT THAT THE AIRBAGS SHOULD HAVE DEPLOYED, GENERAL MOTORS EXPLAINED THAT THERE ARE MULTIPLE PARAMETERS THAT HAVE TO BE MET PRIOR TO DEPLOYMENT, AMONG THEM A DECELERATION RATE OF 10-14 MPH WITHIN 0.05 SECONDS. WHEN THE HUSBAND EXPRESSED HIS THANKS AND STATED HE HAD NO FURTHER QUESTIONS, GENERAL MOTORS CONSIDERED THE CASE TO BE CLOSED. GENERAL MOTORS DID NOT PROVIDE AN ASSESSMENT OF THE CIRCUMSTANCES THAT LED TO THE INCIDENT OR INDICATE THERE EXISTED A CLAIM OR NOTICE ALLEGING A DEFECT. A SEARCH OF ODI/ARTEMIS DATA SPECIFIC TO AIRBAG NONDEPLOYMENT ISSUES IN MY2005-2006 (SECOND GENERATION) SATURN ION MODELS FOUND: TEN VEHICLE OWNER QUESTIONNAIRE COMPLAINTS (10141872, 10173931, 10184279, 10229360, 10232526, 10253290, 10263217, 10266873), TWO INDICATING THE SAME INCIDENT (10161047 AND 10161049); NINE FIELD REPORTS; ONE PURSUIT (IE07-080) ENCOMPASSING 2003-2006 CHEVROLET COBALT AND SATURN ION MODELS, WHICH WAS STILL UNDER REVIEW AS OF SEPTEMBER, 2009; NO FOREIGN CAMPAIGNS, RECALLS OR TECHNICAL SERVICE BULLETINS. GM

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

February 13, 2009

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI09-003

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 3rd quarter of 2008. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 26, 34, 36, 41, 64, 101, 103, 112, 113, 127, 128, 129, 147, 157, 179, 184, 186, 231, 234, 235, 237, 243, 246, 264, 266, 304, 312, 315, 317, 318, 323, 331, 358, 363, 368, 399, 402, 414, 429, 460, 461, 470, 473, 476	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality

for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CRF 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **March 27, 2009**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in black ink that reads "Christina Morgan". The script is cursive and fluid, with the first name and last name clearly distinguishable.

Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS CORPORATION

Vehicle Structure & Safety Integration

March 27, 2009

M. 2009

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI09-003

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated February 13, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 3rd quarter of 2008.

GM's response is comprised of 50 disks for the incidents that are the subject of DI09-003.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 26 259693756 - 657480 and 2007 CADILLAC CTS. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 26 259693756 - 657480_00 **Request and Responses**. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the disk are as follows:

DI09-003
26 259693756-657480
2007 CADILLAC CTS

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See attached document.

2. Provide a copy of the Police Accident Report.

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

26 259693756-657480_01_001 - is the first document responsive to Inquiry no. 1.
26 259693756-657480_02_001 - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI09-003 Response.doc

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incidents that are the subject of DI09-003, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed disk for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(44 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
26	1G6DM57T970	NISM
34	1G6KD57YX7U	NISM
36	1G6KD57Y78U	NISM
41	1GYEC63847R	LIT
64	KL1TD52635B	NISM
101	1G1AL15F077	NISM
103	1G1AL15F677	NISM
112	1G1AL58F087	NISM
113	1G1AL15F587	NISM
127	1G1YY26E485	NISM
128	1G1YY36W185	NISM
129	1G1YY26E985	NISM
147	3GNDA23D48S	RMR
157	2G1WF52E759	NISM
179	1G1ZT61826F	LIT
184	1G1ZT58N98F	NISM
186	1G1ZH57B08F	NISM
231	2GCEC13T561	NISM
234	2GCEK13T161	RUMOR
235	2GCEC13T261	PAR
237	2GCEK13M271	NISM
243	2GCEC13J681	NISM
246	3GCEC13C38G	NISM
264	3GNFC16JX7G	NISM
266	3GNFC16J57G	NISM
304	1GNDT13S952	NISM
312	1GNDT13S762	RUMOR
315	1GNDT13S772	NISM
317	1GNDS13S882	FOREIGN FATALITY
318	1GNDT13S482	NISM
323	1GNDV23L56D	LIT
331	1GKER13757J	NISM
358	3GTEC13J37G	NISM
363	1GTEK19J48Z	NISM
368	1GTHC29K28E	NISM
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
399	1G2AS18H097	NISM
402	1G2ZF55B464	NISM
414	6G2EC57Y09L	NISM
429	2G2WP552X7	NISM
460	1G8ZS57B29F	NISM
461	5GZER33758J	NISM
470	1G8AY11P66Z	PAR
473	1G8AL55F37Z	NISM
476	1G8AJ55F77Z	NISM

2. **Provide a copy of the Police Accident Report.**

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

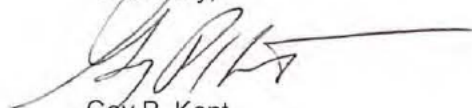
Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

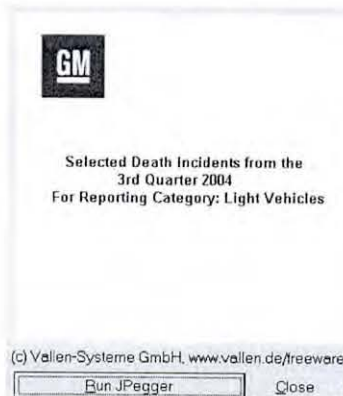


Gay P. Kent
Director
Product Investigations

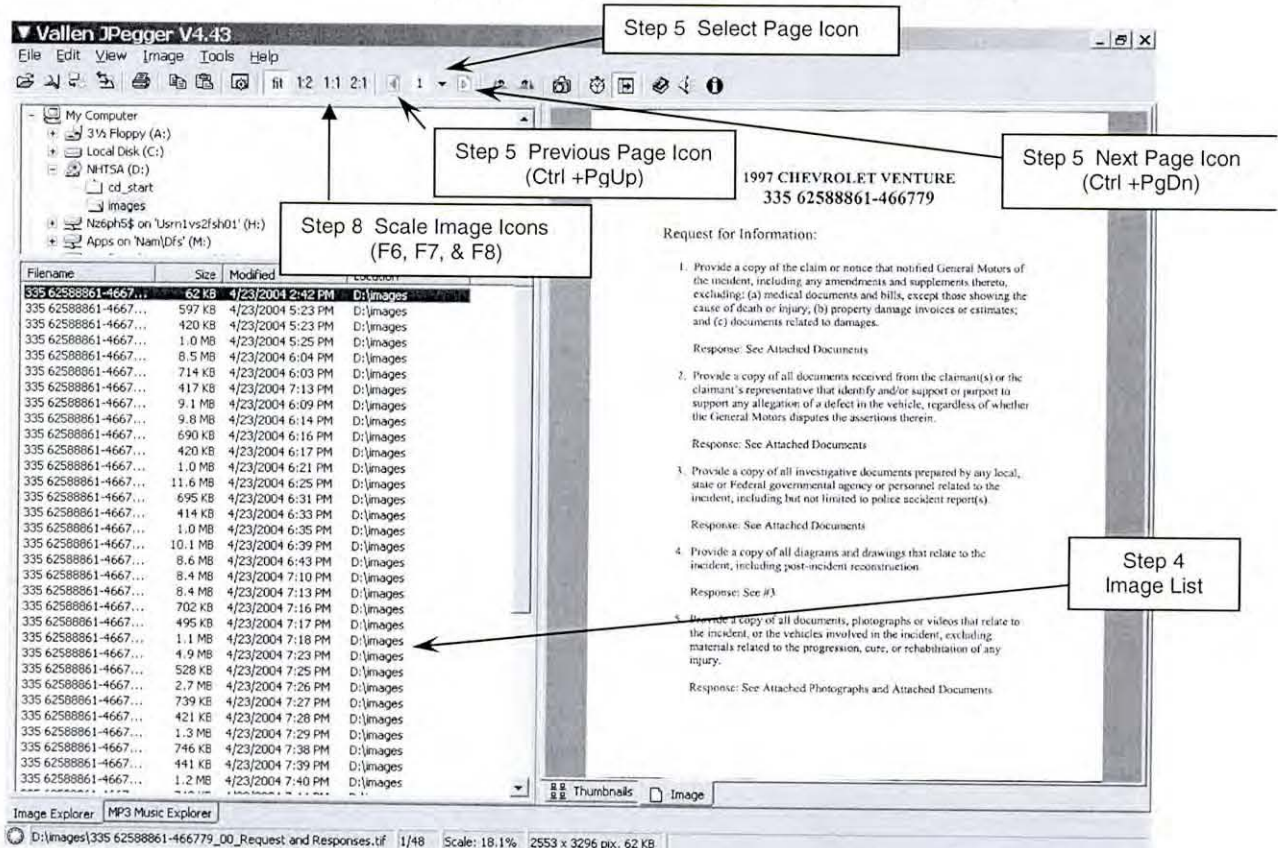
Enclosures: 50 Disks
Attachment A

Attachment A Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, title and number, and address) ERIC D. PARIS, ESQ., S/B# 147836 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES 281 S. THOMAS STREET SUITE 403 POMONA, CALIFORNIA 91766 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126		982.2(b)(1) FOR COURT USE ONLY	
ATTORNEY FOR PARTIES: PLAINTIFF'S SUPERIOR COURT FOR THE STATE OF CALIFORNIA INDIO COURT			
CASE NAME: CARDONA V. CHEVROLET			
CIVIL CASE COVER SHEET ☐ Limited ☒ Unlimited		Complex Case Designation ☐ Counter ☐ Joinder Filed with first appearance by defendant (Cal. Rules of Court, rule 1811)	
		CASE NUMBER ASSIGNED JUDGE	

Please complete all five (5) items below.

1 Check one box below for the case type that best describes this case: ☒ Auto Tort ☒ Auto (22) ☐ Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort ☐ Automobile (24) ☐ Product liability (24) ☐ Medical malpractice (45) ☐ Other PIP/DWD (23) ☐ Non-PIP/DWD (Other) Tort ☐ Business tort/unfair business practice (27) ☐ Copyright, e.g., discrimination, false arrest (26) ☐ Defamation (e.g., slander, libel) (13) ☐ Fraud (16) ☐ Intellectual property (19) ☐ Professional negligence (e.g., legal malpractice) (25) ☐ Other non-PIP/DWD tort (33) ☐ Employment ☐ Wrongful termination (28)		☐ Other employment (18) ☐ Contract ☐ Breach of contract/warranty (26) ☐ Collection (e.g., money owed, open book accounts) (29) ☐ Insurance coverage (14) ☐ Other contract (27) ☐ Real Property ☐ Eminent domain/Inverse condemnation (14) ☐ Wrongful eviction (32) ☐ Other real property (e.g., quiet title) (25) ☐ Unlawful Detainer ☐ Commercial (21) ☐ Residential (22) ☐ Drugs (38) ☐ Judicial Recusor ☐ Asset forfeiture (30) ☐ Pardon or satisfaction award (11)	
2 This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management.		☐ Will of mandate (22) ☐ Other judicial review (39) ☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 1800 - 1812) ☐ Antitrust/Trade regulation (23) ☐ Construction defect (10) ☐ Claims resolution process not filed	
3 The case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management.		☐ Writ of mandate (22) ☐ Other judicial review (39) ☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 1800 - 1812) ☐ Antitrust/Trade regulation (23) ☐ Construction defect (10) ☐ Claims resolution process not filed	
4 Number of causes of action (specify) FIVE		☐ Writ of mandate (22) ☐ Other judicial review (39) ☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 1800 - 1812) ☐ Antitrust/Trade regulation (23) ☐ Construction defect (10) ☐ Claims resolution process not filed	
5 This case ☐ is ☒ is not a class action suit.		☐ Writ of mandate (22) ☐ Other judicial review (39) ☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 1800 - 1812) ☐ Antitrust/Trade regulation (23) ☐ Construction defect (10) ☐ Claims resolution process not filed	

ERIC D. PARIS, ESQ., S/B# 147836
(TYPE OR PRINT NAME)

NOTICE

Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (ex under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1800). This cover sheet in addition to any cover sheet required by local court rule.

If this case is complex under rule 1800 at seq. of the California Rules of Court, you must file this case with the court or proceeding.

Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

CIVIL CASE COVER SHEET

FILE IMAGE INFORMATION

Preferences...

Copy file to... Ctrl+C

Move file to... Ctrl+X

Rename file... F2

Delete file... Del

Copy to clipboard

Rotate left Ctrl+Alt+L

Rotate right Ctrl+Alt+R

Rotate by 180°

Scale to fit F5

Scale 50% F6

Scale 100% F7

Scale 200% F8

Full screen image Ctrl+F11

Slide show F10

Next page Ctrl+PgDn

Previous Image

Next Image

DI09-003
470 260563126 - 71 - 665487504
2006 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: None.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

Service Request Activity

SR No.	(b) (6)	Ref No.		Goodwill	No Goodwill Offered	BRC Type	PAR
Account		Site		GW SubType		Bus. Unit	BRC
Last Name		First Name		Approval	Not Initiated	Area	PAR
Daytime #		Evening #		UCC	Restraints - (SIR) - Driver Front	Sub-Area	Initiate PAR- Collision
Address		City	Harrowman	Involved Dlr	Saturn of Knoxville, Inc.	Safety	Yes
State	TN	Postal Cd		Source	Phone	Updated	10/16/2008 09:24:18 AM
Serial #/VIN	1G8AY11P66Z	Model Year	2006	Priority	Medium	License #	SATURN -
Make	Saturn - GM	Warr. Start	03/29/2006	Status	Closed	Owner	MERCADTO
Model	ION RED LINE	Mileage	24,106	Sub-Status	Dissatisfied	Opened	9/22/2008 02:14:25 PM
Abstract	Restraints - (SIR) - Driver Front						
Customer Description	This is a PAR File. Please Do Not Assume. Forward All Inquiries to Tonie Mercado @ ext 41183.						
	Closed						
	10/16/2008 09:24:10 AM						

GMPP Details

GMPP Term	GMPP Mileage	GMPP Retail Cost
-----------	--------------	------------------

Component Coverage

Component Coverage	Expiration Mileage	Expiration Date
--------------------	--------------------	-----------------

Certificate Details

Certificate Number	Amount	Expiration Date
--------------------	--------	-----------------

Pre-Authorization Basics

Service Dealer	BAC Code	Div. Dealer Code	Repair Order #
----------------	----------	------------------	----------------

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/16/2008 09:24:09 AM	MERCADTO	MERCADTO	SR Closed - Dissatisfied		Done	10/16/2008 09:24:09 AM	Service Request has been Closed
Contact Last Name	Contact First Name	Account	BAC Code				Dissatisfied.
Comments							

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/16/2008 09:23:07 AM	MERCADTO	MERCADTO	BRC PAR	Close-No Offer to Repair/Rep	Done	10/16/2008 09:23:34 AM	Closing file

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments

Resolution in file. Results Delivered

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/15/2008 02:59:36 PM	MERCADTO	MERCADTO	Outbound Call Customer	Made Contact	Done	10/15/2008 03:13:17 PM	

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments

Crs Adv: I was calling to f/u with you in regards to vehicle. I have received the inspection report. And from what I can see is that the data was cleared from the data recorder most likely because the vehicle was transported w/ the keys in the ignition and it erased the data. There was an airbag test to check if there were any problems with the airbag system.

Cust sts: We were just wondering because the impact was so hard and that officer that come out said they should've deployed

Crs Adv: I understand, I'm glad I was able to investigate the situation for you. There are a couple of things that need to happen in order for an airbag to deploy, one of them being there has to be a sudden change in velocity upon impact. That change in velocity has to be between 10-14 mph w/ 1/20th of a second upon the impact. If this doesn't occur the airbags are not meant to deploy.

Cust sts: Ok well thanks

Crs Adv: do you have any other questions

Custs sts: No

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/13/2008 11:41:12 AM	MERCADTO	MERCADTO	Other		Done	10/13/2008 11:52:12 AM	Inspection Received

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments

CDR Data event was erased because it was transported w/ the vehicle on position. From the airbag system test it showed that the airbags are functioning properly. It doesn't show that there is any type of malfunction w/ the airbag system

Tonie Mercado/PAR/ATX

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/10/2008 12:39:09 PM	MERCADTO	MERCADTO	Scheduled Outbound Call	Cust	Done	10/15/2008 03:13:22 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Action Plan Check for inspection results contact cusolmer and advise of findings

10/15
3-5pm est

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/10/2008 12:37:04 PM	MERCADTO	MERCADTO	Outbound Call Customer	Made Contact	Done	10/10/2008 12:38:38 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Crs Adv: was just calling t/u with you I did get message from the inspector that they have been able to perform the inspection and I should be getting the results in a couple of days

Cust sts: Ok I was just wondering

Tonie Mercado/PAR/aTX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/10/2008 09:39:03 AM	MERCADTO	MERCADTO	Email - Inbound		Done	10/10/2008 09:39:53 AM	EAA Inspector
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Inspection is done and I should be receiving results soon

Tonie Mercado/PAR/aTX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/9/2008 01:34:16 PM	MERCADTO	MERCADTO	Email - Outbound		Done	10/9/2008 01:34:46 PM	EAA
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Crs requesting to know what the status is on the inspection as it was sent out 10/3

Tonie Mercado/PAR/ATX

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/9/2008 01:32:29 PM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	10/9/2008 01:34:04 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Cust sts: Was wondering about the the inspection. I haven't heard anything yet.

Crs Adv: It was sent out on the 3rd. So I won't hear anything for 7-14 days and at that point I will get in contact w/ you

Cust sts: Ok I was just curious, last time they called me w/ a day. So I was just wondering.

Crs Adv: Will look into that for you.

Tonie Mercado/PAR/aTX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/3/2008 09:14:03 AM	MERCADTO	MERCADTO	Scheduled Outbound Call	Cust	Done	10/10/2008 12:38:43 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Action Plan: Check for inspectin results and contact customer

10/10
12:2pm est

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/3/2008 09:12:32 AM	MERCADTO	MERCADTO	Other		Done	10/3/2008 09:13:07 AM	2nd Inspection Request Sent
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

First inspection wasn't performed because the vehicle was moved

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/2/2008 02:52:17 PM	MERCADTO	MERCADTO	Scheduled Follow-up		Done	10/3/2008 09:13:11 AM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Send out inspection.

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/2/2008 02:51:07 PM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	10/2/2008 02:51:57 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Cust sts: Fred at the salvage yard said for you to have the inspector call him when they are going to go out there to inspect it and they will have the vehicle there

Crs Adv: will do so.

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/2/2008 02:32:12 PM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	10/2/2008 02:33:57 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Cust sts: I called the place where my car was and they said that it's going to be brought back to Lakeway Auto Salvage for the inspection

Crs Adv: OK not a problem I will send it out

Cust sts: As soon as it gets there I will call you

Crs Adv: OK thanks

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/1/2008 11:58:37 AM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	10/1/2008 12:01:09 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Cust sts: they are going to call me and let me know exactly where the vehicle is and they said at the salvage yard that they told the inspector that they can have the vehicle back w/ a day and he told them no

Crs Adv: Apologized and advised once he gets the info to let me know where it is. But also if any information was at all erased some how that we wouldn't be able to determine anything.

Cust sts: OK well thanks. I will get that information and call you back

Tonie Mercado/PAR/ATX

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/1/2008 11:56:33 AM	MERCADTO	MERCADTO	Scheduled Outbound Call	Cancelled - Cust Called Prior	Done	10/3/2008 09:13:52 AM	

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments

Action Plan Contact the customer to see if he knows where the vehicle is, if not close out file

10/3

4-6pm est

Tonie Mercado/PAR/ATX

Customer still wants to have inspection and it has been re-sent

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/1/2008 11:50:01 AM	MERCADTO	MERCADTO	Inbound Call Customer	Campaign/Special Policy	Done	10/1/2008 11:56:14 AM	

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments

Cust sts: I was returning your call

Crs Adv: I was calling you because I was informed by our inspector that the veh was no longer at that salvage yard therefore we cannot inspect the vehicle

Cust sts: If i find out where it is then could you

Crs Adv: Yes of course we could but i'd like to advise you again that since the vehicle is totaled out the inspection would be just for informational purposes only.

Cust sts: Yes ma'am I'm aware. But I will see if I can get the location cause I want this looked into

Crs Adv: I understand and I will follow up with you on Friday to see where we stand at that point

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
10/1/2008 11:20:03 AM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	10/1/2008 11:23:45 AM	

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments

Tp sts neither one of them are avail.

Crs left contact info and requested a call back

Tonie Mercado/PAR/ATX

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/29/2008 09:09:43 AM	MERCADTO	MERCADTO	Email - Inbound		Done	9/29/2008 09:10:17 AM	EAA Inspection
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

I AM ADVISED BY LAKEWAY AUTO SALVAGE THAT VEHICLE HAS BEEN SOLD AND MOVED FROM THEIR LOCATION.
THIS SEEMS TO INDICATE CASE CLOSED.
PLEASE ADVISE OF ANY FURTHER ACTIVITY ON THIS CASE.
THANKS!!

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/24/2008 12:30:56 PM	MERCADTO	MERCADTO	Scheduled Outbound Call	Cancelled - Cust Called Prior	Done	10/1/2008 11:56:29 AM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Action Plan: Check on inspection results and follow up with customer either way.

10/1
1-3pm est

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/24/2008 12:30:44 PM	MERCADTO	MERCADTO	Other		Done	9/24/2008 12:30:55 PM	EAA inspection request sent
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/24/2008 12:00:30 PM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	9/24/2008 12:07:08 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Cust sts: Calling you back the vehicle is at the salvage yard
Lakeway Motors in Morris Town LAKEWAY AUTO SALVAGE 3795 Old 25-E Morristown, TN 37813 Phones: (423) 586-6350 (423) 587-2433
(423) 235-2060.
Told insurance comp that GM was going to inspect it and check the airbags.
Farmers Mutual Monica is the ins adjustor's name

Crs Adv: will send out the inspection will take 7-14 days to receive results will SOCC in a week to advise of where we are at that point

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 05:28:16 PM	MERCADTO	MERCADTO	Scheduled Outbound Call Cust	Cancelled - Cust Called Prior	Done	9/24/2008 12:07:46 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Action Plan Contact the cust if he hasn't called me yet and see if he has info from the salvage yard.

9/25
1-3pm est

Tonie Mercado/PAR/ATX

Cust called first and gave salvage yard information

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 04:17:27 PM	MERCADTO	MERCADTO	Ownership Changed	Ownership Escalated to BRC	Done	9/23/2008 04:17:27 PM	Ownership Escalated to BRC
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:43:04 PM	DRAHEICM	MERCADTO	Ownership Changed		Done	9/23/2008 12:43:04 PM	Service Request Ownership has changed FROM: WELLMAR2 TO: MERCADTO
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:47 PM	DRAHEICM	MERCADTO	BRC PAR	Initial Contact- Phone	Done	9/23/2008 04:48:52 PM	called
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
Cust sts: Cust's wife							

Cust sts: Cust's wife

Cust sts: Wife was driving down the road, she goes to see me on my last break at work before she went in to her work. And another car was driving on the wrong side of the road in the opposite direction and as they got closer to her they swerved even more towards her and she jerked the wheel to the right to try to avoid hitting them and she hit the small curb and there is a 4ft drop down into the woods so she went down that way and ran into a tree.

Crs Adv: where is the vehicle now

Cust sts: IT was totaled. The ins adjustor had it towed to a Salvage Yard not sure where though

Crs Adv: we can inspect the vehicle but we would need to know exactly where the vehicle is. Address contact phone number

Cust sts: will get that information and call you back tomorrow

Crs provided contact info

Tonie Mercado/PAR/aTX

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:42 PM	DRAHEICM	MERCADTO	BRC PAR	Initial Contact- Dealer	Done	9/23/2008 04:21:02 PM	called Saturn of Knoxville @ (865) 970-2041
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Crs Spoke w/: left message on voicemail

Crs Adv: calling to inform you that we have received a file in your area and have your listed as the involved retailer and would like to know if you have any information in regards to the allegation and if we need to inspect the veh can it be done on your lot please call me

left contact info

cust name

VIN and SR

Tonie Mercado/PAR/aTX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:34 PM	DRAHEICM	MERCADTO	BRC PAR	Initial Contact- AVM	Done	9/23/2008 03:56:43 PM	called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Not required to call AVM

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:30 PM	DRAHEICM	MERCADTO	BRC PAR	Acknowledgement	Done	9/23/2008 04:42:00 PM	called
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Crs Adv: This is Tonie Mercado calling from the GM Product Allegation Dept. I have received your file and do require further information. Do you have a moment to speak to me?

Cust sts: Yes

Crs will be speaking to [REDACTED] Cust Husband

Continued in Initial

Tonie Mercado/PAR/ATX

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:26 PM	DRAHEICM	MERCADTO	Notify CRM		Done	9/23/2008 05:29:31 PM	file assigned
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:22 PM	DRAHEICM	MERCADTO	Research		Done	9/23/2008 03:56:00 PM	research vin
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

No open recalls
No prev related claim history
No other Files

Tonie Mercado/PAR/ATX

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 12:42:06 PM	DRAHEICM	MERCADTO	BRC PAR	Case Assigned	Done	9/23/2008 05:29:34 PM	assigned to tonie mercado ext 41183
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 10:26:12 AM	DRAHEICM	WELLMAR2	SR Opened		Done	9/23/2008 10:26:12 AM	SR in Status of Closed has been Re-Opened by DRAHEICM
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/23/2008 10:26:11 AM	DRAHEICM	WELLMAR2	SR Closed - Dissatisfied		Done	9/23/2008 10:26:11 AM	Service Request has been Closed
Contact Last Name	Contact First Name	Account	BAC Code		Dissatisfied.		
Comments							

Service Request Activity

Activities

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/22/2008 02:46:28 PM	WELLMAR2	DRAHEICM	Escalation	Initiate PAR	Done	9/23/2008 10:24:37 AM	Assigning activity to PAR QUEUE
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

CRS advised that a person from the PAR Department will contact the customer within 2 business days.*

Received and assigned in PAR.
Chad Draheim/ATX/Workflow PAR

Created	Created By	Assigned To	Activity Type	Activity SubType	Status	Completed	Description
9/22/2008 02:14:54 PM	WELLMAR2	WELLMAR2	Inbound Call Customer	Complex Request	Done	9/22/2008 02:46:15 PM	documenting call Alleged product allegation-airbags did not deploy
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Cust adv: I have been told by Police and also Saturn of Knoxville that I should be contacting you there to let you know that my wife had an accident July 23/08 and she has not been able to walk since.

The air bags did not deploy and everyone I've talked to indicates that they should have deployed

CRS adv: will complete information and send to Pre-PAR team for assessment

RuthWellman/SaturnCAC/T1/Chatham

UCC Codes

UCC Code	UCC Symptom	UCC Description
C46	SIR - Did Not Deploy	Restraints - (SIR) - Driver Front